

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

FRANCISCUS DYLAN ROSARIO

Plaintiff and Appellant

v.

SUBHI ABDELHALIM, individually, and dba SONOMA LIQUOR

Defendant and Respondent,

RESPONDENT’S OPPOSITION TO APPELLANT’S MOTION TO
DIREGARD MATTERS OUTSIDE THE RECORD IN RESPONDENT’S
BRIEF, OR IN THE ALTERNATIVE TO STRIKE THOSE PORTIONS

San Francisco County Superior Court
Case No. CGC-21-594102
The Honorable Garrett L. Wong, Judge Presiding

Rebekah A. Morrissey, Esq.
KOYAMA & COSTELLO
Attorneys for Respondent Subhi Abdelhalim, individually,
and dba Sonoma Liquor
P.O. Box 24508
Oakland, CA 94623-1508

INTRODUCTION

Appellant's motion to disregard portions of the Respondent's Opening Brief takes issue with 7 portions of the brief. In essence, Appellant and Respondent disagree on the content of the appellate record. This is not grounds to disregard Respondent's argument simply because Appellant disagrees with the implications and ramifications of his statements on the record.

Further, the lack of record on several key points is exactly the point being made by Respondent. Appellant failed to properly preserve and object to the failure to give certain instructions on the record so as to preserve the right to appeal on those issues. Respondent requests the Court deny Appellant's motion in its entirety.

ARGUMENT

Appellant objects to the 7 portions of Respondent's brief claiming violation of California Rule of Court 8.204(a)(1)(C) because there is no citation to the record. However, Appellant completely misses the point being made. Respondent pointed out that Appellant did not object, on the record, to the failure to give CACI 705, 707, or 710. Further, several of the sentences objected to are argument and not citing to a specific fact.

Appellant's position is essentially that by submitting proposed jury instructions, the failure to give any of those instructions means the trial court refused to give those instructions and preserves that issue on appeal. That is simply contrary to the law. Proposing a jury instruction is not the same as objecting to it not being given. It is routine for the parties and the court to discuss and agree to which instructions will be given. If this conversation ever occurred, it is not part of the appellate record and therefore constitutes waiver of the alleged instructional error. California Code of Civil Procedure section 647 deems the refusal to give a jury instruction as being excepted to

on appeal. There is no evidence in the appellate record that the trial court ever refused to give CACI 705, 707, or 710.

Appellant proposed 152 jury instructions, many of which were duplicative. The court ended up giving 23 instructions. Obviously, there was some discussion regarding which instructions would be given. There is nothing in the appellate record regarding how the jury instructions were selected, if they were agreed upon, and nothing indicating that the court refused to give any of the instructions, rather than the parties simply agreeing to the jury instructions to be given. This is further supported by RT 11 which contains discussions related to the juror questions. Appellant never raised any prior issues with the Court refusing to give any of his jury instructions.

“Under the doctrine of waiver, a party loses the right to appeal an issue caused by affirmative conduct or by failing to take the proper steps at trial to avoid or correct the error. [Citation.]” (*Telles Transport, Inc. v. Workers' Comp. Appeals Bd.* (2001) 92 Cal.App.4th 1159, 1167.)

The doctrine of invited error provides that a party may not assert as a ground for reversal an error that he or she induced the trial court to commit. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 403 [87 Cal. Rptr. 2d 453, 981 P.2d 79]; *Huffman v. Interstate Brands Corp.*, *supra*, 121 Cal.App.4th at p. 706.) “At bottom, the doctrine rests on the purpose of the principle, which prevents a party from misleading the trial court and then profiting therefrom in the appellate court.” (*Norgart*, *supra*, 21 Cal.4th at p. 403.)

Appellant's conduct in the record clearly shows he invited the instructional error. Appellant vehemently objected to the jury even considering the Vehicle Code sections at issue and moved for a mistrial on those grounds. Appellant specifically argued that the jury should not be “requesting Vehicle Code sections that were not presented during the trial in view of the evidence.” (RT 11, 4:18-25.) This is direct evidence that Appellant did not request instruction on these Vehicle Code sections at trial.

To argue the opposite on appeal is the definition of misleading the trial court to profit therefrom on appeal.

A. Respondent's Brief, Page 8, Lines 8-16

Appellant claims this portion of the brief violates CRC 8.204, which requires each brief to “[s]upport any reference to a matter in the record by a citation to the volume and page number of the record where the matter appears.” However, Respondent does cite to RT 11, 3:5-4:25 to support the statements made in this section of the brief. Appellant alleges not that there is no citation to the record, but that Respondent mischaracterizes the contents of that portion of the record. The record speaks for itself and Respondent maintains that the cited portion of the record fully supports the position that Appellant did not request the Court instruct the jury on Vehicle Code section 22107 or 21804(a) and instead specifically objected to any consideration of these sections as improper and grounds for mistrial.

B. Respondent's Brief, Page 9, Lines 5-12

Appellant again claims that this portion of the brief violates CRC 8.204 and does not cite to the appellate record. This is simply untrue. This portion of Respondent's brief addresses Appellant's citation to the record. Respondent's brief at the bottom of page 8 cites to RT 11, page 10. Page 9, lines 5-12 continue the discussion of the contents of page 10 of RT 11. Respondent appropriately cited to the appellate record and then proceeded to discuss and argue further. There is nothing improper about the contents of this portion of Respondent's brief.

Appellant claims the brief ignores a timely objection found in RT 11, pages 11-12. However, as argued and cited in Respondent's brief, this portion of the record does not support Appellant's position as he directly concedes he did not object to the response to juror questions #1.

C. Respondent's Brief, Page 10, Lines 15-21

Appellant alleges violation of CRC 8.204. However, the section quoted is argument referencing the facts as laid out in the factual background section which contains citations to the appellate record, RT 11, 3-4; 10-12.

Appellant again attempts to argue that because in his 152 requested jury instructions he included the entire range of motor vehicle instructions, which included a host of instructions wholly inapplicable to his case, that is sufficient to establish that the trial court refused to give those instructions. This is wildly speculative and unsupported by the record. Again, proposed jury instructions and refusal to give an instruction are two wholly independent inquiries. It is clear from Appellant's statements to the trial court during jury questions, he did not contemplate Vehicle Code section 22107 and 21804(a) as being considered by the jury. RT 11, 4:8-10 states: "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions." This statement clearly supports the fact that Appellant did not want and agreed that these Vehicle Code sections were not to be part of the jury instructions. Appellant cannot now argue the opposite on appeal.

D. Respondent's Brief, Page 10, Lines 29-31

Appellant again argues violation of CRC 8.204. However, Respondent is not reciting a fact contained in the record, but pointing out that no such evidence in the record exists. Appellant attempts to argue that Respondent's position is that he never requested CACI 705, 707, or 710. Respondent's argument is more nuanced than that. Respondent cites to the proposed jury instructions and notes that while Appellant lists a whole host of instructions, nearly all of which were not given, he does not specifically write out a turning instruction.

Further, the key point is that there is no evidence in the record that the Court refused to give any specific jury instructions. Code of Civil Procedure section 647 provides that a refusal to give an instruction is deemed excepted to by law. However, Appellant cannot demonstrate that the Court refused to give any specific instruction.

There is no contradiction in Respondent's position with the appellate record. Proposed jury instructions are not prima facie evidence of a refusal to give an instruction. Appellant's own argument in RT 11 supports the fact that Vehicle Code section 22107 and 21804(a) were not supposed to be part of the jury instructions.

E. Respondent's Brief, Page 11, Lines 6-11

Appellant again argues violation of CRC 8.204. This statement is argument, synthesizing the law and facts as laid out in the brief. It is clear that the underlying facts are found in RT 11, pages 3-4, 10-12. Appellant's invited error/waiver of the requested jury instructions is clearly demonstrated by his argument that the jury should not be instructed on Vehicle Code sections 22107 and 21804(a). That fact alone is enough to establish invited error. Appellant attempted to convince the Court to grant a motion for mistrial based upon juror's even asking to be instructed on these code sections. Appellant cannot now, on appeal, attempt to argue that the Court should have instructed on these code sections and it is reversible error not to do so. Respondent is not misrepresenting the record; Appellant fails to appreciate its full contents.

F. Respondent's Brief, Page 13, Lines 25-28

Appellant again argues violation of CRC 8.204. However, as indicated in the section above, these facts have previously been cited to at RT 11, 3-12.

Appellant's remarks are not confined to outside juror research. Appellant specifically states:

"I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions." RT 11, 4:8-10.

"THE COURT: I see. So you don't have an objection to the instruction given in response to Jury request number one?

MR. ROSARIOD: No. I have objection to the fact that they were accessing or requesting all of them anyways. But in number one, you know, I understand what's going on here. They should not have been accessing external information or requesting Vehicle Code sections that were not presented during the trial in view of the evidence." RT 11, 4:15-28.

"Secondly, them asking for that information in question number one means that either somebody has accessed external information specifically about vehicle codes in order to clarify. The Defense should have also – if they wanted to have those codes in there, they should have provided them to the Jury. They did not." RT 11, 5:28-6:6.

"With regard to Jury request form number one, first of all, you did not object to the language that was submitted to the Jury. The Court presented that response in Jury request number one to each party before delivering it to the jury." RT 11, 6:16-21.

Respondent's brief does not misrepresent the record in any way.

G. Respondent's Brief, Page 14, Lines 16-20

Appellant again raises the same issues, violation of CRC 8.204 and misrepresentation of the record. As a threshold matter, this section is the conclusion, pure argument. While Appellant may disagree with Respondent's position, he may not strike the section simply because he does not like its conclusion. Further, as laid out above repeatedly, Respondent vehemently disputes Appellant's reading of the appellate record. The never requested language deals with Appellant's failure to actually request the Court instruct the jury with these jury instructions and the complete lack of any evidence that the Court actually refused to give the instructions.

CONCLUSION

Appellant's motion seeks to disregard portions of Respondent's brief because he does not agree with them, not because they violate any rule or law. Respondent requests the Court deny Appellant's motion in its entirety.

September 1, 2026



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Rebekah A. Morrissey
Attorneys for Respondent Subhi
Abdelhalim, individually,
and dba Sonoma Liquor